IN THE HIGH COURT OF DELHI AT NEW DELHI
CRIMINAL WRIT PETITION NO. 8841 OF 2024

IN THE MATTER OF:
ANAND TECH SOLUTIONS PVT. LTD. ...PETITIONER
THROUGH ITS AUTHORIZED DIRECTOR

VERSUS

1. STATE OF NCT OF DELHI ...RESPONDENT NO. 1
THROUGH STANDING COUNSEL (CRIMINAL)

2. CYBER CRIME CELL, DELHI POLICE ...RESPONDENT NO. 2

WRIT PETITION UNDER ARTICLE 226 OF THE CONSTITUTION OF INDIA
PRAYING FOR ISSUANCE OF A WRIT OF CERTIORARI OR ANY OTHER
APPROPRIATE WRIT FOR QUASHING OF FIR NO. 402/2023 DATED 14.11.2023
REGISTERED UNDER SECTION 66 OF THE INFORMATION TECHNOLOGY ACT, 2000
AND SECTION 420 OF THE INDIAN PENAL CODE, 1860.

MEMO OF FACTS AND GROUNDS

1. The Petitioner is a duly incorporated technology company engaged in the development of enterprise cloud infrastructure and security management.

2. The dispute between the parties is purely of a civil and commercial nature arising out of contractual interpretation of the Master Service Agreement dated 12.01.2022 entered into with the de-facto complainant.

3. The impugned FIR No. 402/2023 was registered maliciously at PS Cyber Cell to coerce the Petitioner into settling a disputed commercial invoice.

4. It is well settled by the Hon’ble Supreme Court in State of Haryana v. Bhajan Lal that criminal proceedings instituted with an ulterior motive for wreaking vengeance are liable to be quashed under writ jurisdiction.

LEGAL SUBMISSIONS AND GROUNDS FOR QUASHING

A. NO OFFENCE UNDER SECTION 66 OF THE IT ACT:
The ingredients of Section 66 are completely unfulfilled. The Petitioner had legitimate, contractually authorized root administrative access to the server environment. Access with authorization cannot constitute hacking.

B. INGREDIENTS OF SECTION 420 IPC ARE ABSENT:
There was no fraudulent or dishonest intention at the inception of the contract. Mere inability to fulfill commercial milestones due to pandemic supply delays does not constitute the criminal offence of cheating.

PRAYER:
In view of facts and circumstances stated hereinabove, Petitioner prays that this Hon’ble Court may be pleased to:
(a) Issue a Writ of Certiorari quashing FIR No. 402/2023 PS Cyber Cell;
(b) Pass an ad-interim order restraining coercive action against directors.